

24SMCV04434 24SMCV04434

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TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

September

22, 2026

CASE NUMBER

24SMCV04434

MOTION

Motion

for Summary Judgment/Summary Adjudication

MOVING PARTIY

Defendant Bel Air Glen Homeowners

Association

OPPOSING PARTIES

Plaintiffs

Tova Glockner and David Glockner, individually and as trustees of the
Glockner Family Trust Dated May 22, 1996

MOVING PAPERS:

Notice

of Motion and Motion for Summary Judgment/Summary Adjudication; Memorandum
of Points and Authorities; Declaration of Gregg Landis

Separate

Statement of Undisputed Material Facts

OPPOSITION PAPERS:

Opposition to Motion for Summary

Judgment/Summary Adjudication; Memorandum of Points and Authorities

Separate Statement in Response

Declarations of Tova Glockner;

Allyson P. Wittner; Rodney T. Lewin

Index of Exhibits

Evidentiary Objections

REPLY PAPERS:

Reply

Re: Motion for Summary Judgment/Summary Adjudication

BACKGROUND

This case arises from allegations of water runoff and tree root damage
to Plaintiffs' property.

On September 13, 2024, Plaintiffs Tova Glockner and David Glockner,
individually and as Trustees of the Glockner Family Trust Dated May 22, 1996
("Plaintiffs") filed suit against Defendants Wendy Burke, Russell Burke, and

Bel Air Glen Homeowners Association Inc. fka Beverly Glen Park Homeowner's Association Inc. ("Defendants") alleging nine causes of action as follows:

(1)

Breach of CC&Rs

(2)

Negligence

(3)

Breach of Fiduciary Duty

(4)

Trespass

(5)

Nuisance

(6)

Selective Enforcement

(7)

Elder Abuse

(8)

Temporary Restraining Order, Preliminary Injunction,
and Permanent Injunction

(9)

Declaratory Relief

On November 12, 2024, Defendant Bel Aire Homeowners Association ("HOA") filed a cross-complaint against Roes 1 through 25 for equitable indemnity, contribution, and declaratory relief.

HOA now moves for summary judgment, or in the alternative, summary adjudication of the following issues:

1. Plaintiffs' first cause of action for Breach
of CC&Rs;

2. Plaintiffs' second cause of action for Negligence;

3. Plaintiffs' third cause of action for Breach of Fiduciary Duty;

4. Plaintiffs' fourth cause of action for Trespass;

5. Plaintiffs' fifth cause of action for Nuisance;

6. Plaintiffs' sixth cause of action for Selective Enforcement;

7. Plaintiffs' seventh cause of action for Elder Abuse;

8. Plaintiff's eighth cause of action for Temporary Restraining Order, Preliminary Injunction and Permanent Injunction;

9. Plaintiffs' ninth cause of action for Declaratory Relief; and

10. Plaintiffs' claim for punitive damages.

Plaintiffs oppose the motion and HOA replies.

LEGAL STANDARDS – MOTION FOR SUMMARY JUDGMENT/ADJUDICATION

"[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law[.] There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850

(hereafter Aguilar).) 2 “[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.” 2 (Ibid.; Smith v. Wells Fargo Bank, N.A. (2005) 135 Cal.App.4th 1463, 1474 [summary judgment standards held by Aguilar apply to summary adjudication motions].)

Further, “the trial court may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true. Nor may the trial court grant summary judgment based on the court’s evaluation of credibility.” (Aguilar, supra, 25 Cal.4th. at p. 840 [cleaned up]; see also Weiss v. People ex rel. Department of Transportation (2020) 9 Cal.5th 840, 864 [“Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party”].)

A party may move for summary adjudication as to one or more causes of action, affirmative defenses, claims for damages, or issues of duty if that party contends that there is no merit to the cause of action, defense, or claim for damages, or if the party contends that there is no duty owed. (See Code Civ. Proc., § 437c, subd. (f)(1).) “A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Ibid.) A cause of action has no merit if: (1) one or more elements of the cause of action cannot be separately established, even if that element is separately pleaded, or (2) a defendant establishes an affirmative defense to that cause of action.

(See Code Civ. Proc., § 437c, subd. (n); Union Bank v. Superior Court (1995) 31 Cal.App.4th 573, 583.)

Once the defendant has shown that a cause of action has no merit, the burden shifts to the plaintiff to show that a triable issue of material fact exists as to that cause of action. (See Code Civ. Proc., § 437c, subd. (o)(2); Union Bank v. Superior Court, supra, 31 Cal.App.4th at p.

583.) Additionally, in line with Aguilar,

“[o]n a motion for summary adjudication, the trial court has no discretion to exercise. If a triable issue of material fact exists as to the challenged causes of action, the motion must be denied. If there is no triable issue of

fact, the motion must be granted.” (Fisherman's Wharf Bay Cruise Corp.
v. Superior Court (2003) 114 Cal.App.4th 309, 320.)

EVIDENTIARY

OBJECTIONS

The Court rules as follows with
respect to Plaintiffs' evidentiary objections to the Declaration of Gregg
Landis:

1.

Overruled

2.

Overruled

3.

Overruled

4.

Overruled

5.

Overruled

6.

Overruled

7.

Overruled

8.

Overruled

9.

Overruled

10. Overruled

11. Sustained

12. Sustained

13. Sustained

14. Sustained

15. Sustained

16. Overruled

17. Sustained

18. Overruled

19. Sustained

20. Sustained

21. Sustained

22. Sustained

23. Sustained

24. Sustained

25. Sustained

26. Sustained

27. Sustained

28. Sustained

29. Sustained

30. Sustained

31. Sustained

32. Sustained

33. Sustained

34. Sustained

35. Sustained

36. Sustained

37. Sustained

38. Sustained

39. Sustained

40. Sustained

DISCUSSION

1. ISSUE 1 – FIRST CAUSE OF ACTION – BREACH OF THE CC&Rs

“The pleadings play a key role in a summary judgment motion. The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues and to frame the outer measure of materiality in a summary judgment proceeding. As our Supreme Court has explained it: The materiality of a disputed fact is measured by the pleadings, which set the boundaries of the issues to be resolved at summary judgment. Accordingly, the burden of a defendant moving for summary judgment only requires that he or she negate plaintiff's theories of liability as alleged in the complaint; that is, a moving party need not refute liability on some theoretical possibility not included in the pleadings.” (Hutton v. Fidelity National Title Co. (2013) 213 Cal.App.4th 486, 493 [cleaned up]; see also Laabs v. City of Victorville (2008) 163 Cal.App.4th 1242, 1258 [“The complaint limits the issues to be addressed at the motion for summary judgment. The rationale is clear: It is the allegations in the complaint to which the summary judgment motion must respond”].)

Here, Plaintiffs allege, in
breaching Articles 4, 6.1, 6.2, 7.1, and 7.2 of the CC&Rs, the HOA:

(a)

unreasonably delayed maintaining and making and has failed and refused to maintain and make necessary repairs to the Common Areas and Appurtenant Areas in the Project, including as it relates to the Burke Property and conditions thereon, and the flooding therefrom causing damage to Plaintiffs and Plaintiffs Property.

(b)

unreasonably delayed inspecting and giving written notice to the Burkes and/or undertaking to remedy and/or correct the conditions or violation of the CC&Rs, including as it relates to the Burke Property and conditions thereon, the flooding therefrom causing damage to Plaintiffs and Plaintiffs Property.

(c)

failing to take corrective measures to rectify the Burke Property and conditions thereon, and the flooding therefrom causing damage to Plaintiffs and Plaintiffs Property.

(d)

unreasonably delayed inspecting, maintaining and making and has failed and refused to maintain and make all the necessary repairs and take all the corrective action, including to the Common Areas and Appurtenant Areas, as it relates to the HOA Tree and the HOA Tree roots encroaching on Plaintiffs Property and causing damage to Plaintiffs and/or Plaintiffs Property.

(e)

unreasonably delayed inspecting, maintaining and making and has failed and refused to maintain and make all necessary repairs and take all corrective actions, including to the Common Areas and Appurtenant Areas, as it relates to the Burke Tree roots and/or 2905 Trees' roots encroaching on Plaintiffs Property and causing damage to Plaintiffs and/or Plaintiffs Property.

(f)

unreasonably delayed giving written notice to the Burkes, the owner of 2905 Trees, and/or Does 1-50 and/or undertaking to remedy and/or take corrective

actions to address the conditions or violation of the CC&Rs, including as it relates to the Burke Tree roots and/or 2905 Trees' roots encroaching on Plaintiffs Property and causing damage to Plaintiffs and/or Plaintiffs' Property.

(Complaint ¶ 48.) Thus, Plaintiffs allege the HOA breached the CC&Rs in its mishandling of the water runoff damage caused by changes the Burkes did to landscaping and drainage in an appurtenant/common area, and of tree roots encroaching onto Plaintiff's property.

a. HOA's Evidence

The HOA argues that the Burkes, and not the HOA, caused the water runoff damage by altering their landscaping and drainage without HOA approval, Yet the HOA acted expeditiously in addressing the issue, and the HOA's actions in this regard are generally presumed reasonable, under the Business Judgment Rule.

The HOA also argues that it worked expeditiously to resolve the tree root issue by offering to pay to repair the issue, but Plaintiffs unreasonably rejected the offer.

However, as indicated by the Court's evidentiary rulings above, while Landis obviously has personal knowledge of emails upon which he was copied, as well as HOA matters generally, including the CC&Rs, his characterizations of which are corroborated by a copy of the CC&Rs attached to the Landis declaration, much of the Landis declaration constitutes matters of which lack personal knowledge, or which are inadmissible hearsay and improper opinions.

As to the tree root issue, none of Landis' statements about the experts' analyses or the HOA's resulting actions are properly before the Court.

Therefore, the HOA has not met its initial prima facie burdens of production and persuasion to demonstrate that Plaintiffs will be unable to prevail on their first cause of action for breach of the CC&Rs.

2. ISSUE 2 – SECOND CAUSE OF ACTION – NEGLIGENCE

The HOA similarly argues that its response to the water runoff and tree root issues are entitled to a presumption of reasonableness pursuant to the Business Judgment Rule.

But as discussed above, most of the HOA's evidence regarding the expert analysis and the efforts it undertook are not properly before the Court. As such, the HOA has not met its initial burdens of production and persuasion to demonstrate it did not breach its duty of care to Plaintiffs.

3. ISSUE 3 – THIRD CAUSE OF ACTION – BREACH OF FIDUCIARY DUTY

The HOA concedes there is a special relationship giving rise to a fiduciary duty as between the HOA and its members to enforce its governing documents in good faith and not in an arbitrary, capricious, or inconsistent or unfair manner.

Plaintiffs argue the HOA breached its fiduciary duty by failing to properly address the drainage and tree root issues. (Complaint ¶¶ 61-63.)

Thus, as discussed above, because of the evidentiary problems, particularly as to the tree root issue, the HOA has not met its initial prima facie burdens of production and persuasion with respect to Issue 3.

4. ISSUE 4 – FOURTH CAUSE OF ACTION – TRESPASS

"Trespass is an unlawful interference with possession of property." (Ralphs Grocery Co. v. Victory Consultants, Inc. (2017) 17 Cal.App.5th 245, 261 (hereafter Ralphs).) Moreover, "Trespass may be by personal intrusion of the wrongdoer or by his failure to leave; by throwing or placing something on the land; or by causing the entry of some other person. A trespass may be on the surface of the land, above it, or below it." (Martin Marietta Corp. v. Insurance Co. of North Am. (1995) 40 Cal.App.4th 1113, 1132 [cleaned up].)

Against

that backdrop, “the elements of trespass are: (1) the plaintiff’s ownership or control of the property; (2) the defendant’s intentional, reckless, or negligent entry onto the property; (3) lack of permission for the entry or acts in excess of permission; (4) harm; and (5) the defendant’s conduct was a substantial factor in causing the harm.”

(Ralphs, supra, 17 Cal.App.5th at p. 262, citing CACI No. 2000.)[1]

The Complaint alleges

Defendants “have caused, authorized, permitted and/or allowed and/or failed to repair and correct, conditions which have caused water and roots to intrude upon Plaintiffs’ Property, causing damage to Plaintiffs’ Property, Plaintiffs’ personal property and interference with Plaintiffs’ use and enjoyment of Plaintiffs’ Property.” (Complaint ¶ 69.)

HOA argues that its actions

vis-à-vis the water runoff and tree root issues are entitled to deference by way of the Business Judgment Rule.

But as discussed above,

because of the evidentiary problems, particularly with respect to the tree root issue, HOA has not met its initial prima facie burdens of production and persuasion that it did not cause or contribute to a trespass upon Plaintiffs’ property.

5. ISSUE 5 – FIFTH CAUSE OF ACTION – NUISANCE

A “nuisance” is “[a]nything which is injurious to health, including, but not limited to, the illegal sale of controlled substances, or is indecent or offensive to the senses, or an obstruction to the free use of property, so as to interfere with the comfortable enjoyment of life or property, or unlawfully obstructs the free passage or use, in the customary manner, of any navigable lake, or river, bay, stream, canal, or basin, or any public park, square, street, or highway, is a nuisance.”

(Civ. Code, § 3479.)

The Complaint alleges Defendants’

conduct caused, created, and/or permitted the conditions on Plaintiffs’ property that are harmful to Plaintiffs’ health, indecent or offensive to the

senses, and/or obstructs the free use of Plaintiffs' property. (Complaint ¶¶ 74-75.)

The HOA argues that its conduct is entitled to a presumption of reasonableness under the Business Judgment Rule. But as discussed above, the HOA has failed its initial prima facie burdens of production and persuasion to demonstrate that it took reasonable actions, especially with respect to the tree root issue.

Further, there is no reasonableness element to nuisance – either the HOA caused or contributed to a condition which is injurious to health, indecent or offensive to the senses, or an obstruction to the free use of property, or it did not.

6. ISSUE 6 – SIXTH CAUSE OF ACTION – SELECTIVE ENFORCEMENT OF THE CC&Rs

HOA argues it did not selectively enforce the HOAs, as supported by the Declaration of Gregg Landis. But as discussed above, the HOA has not met its initial prima facie burdens of production and persuasion to demonstrate that it did not selectively enforce the HOAs.

7. ISSUE 7 – SEVENTH CAUSE OF ACTION – ELDER ABUSE

The HOA argues it did not commit elder abuse because its actions are entitled to deference pursuant to the Business Judgment Rule. But as discussed above, the HOA has not met its initial prima facie burdens of production and persuasion with respect to its actions and whether those actions were or were not reasonable under the circumstances.

8. ISSUE 8 – EIGHTH CAUSE OF ACTION – INJUNCTIVE RELIEF

“A permanent injunction is an equitable remedy for certain torts or wrongful acts of a defendant where a damage remedy is inadequate. A permanent injunction is a determination on the merits that a plaintiff has prevailed on a cause of action

for tort or other wrongful act against a defendant and that equitable relief is appropriate. A permanent injunction is not issued to maintain the status quo but is a final judgment on the merits."

(Art Movers, Inc. v. Ni West, Inc. (1992) 3 Cal.App.4th 640, 646, citation omitted; see also Civ. Code, § 3422 ["[a] final injunction may be granted to prevent the breach of an obligation existing in favor of the applicant: 1. Where pecuniary compensation would not afford adequate relief . . . 3. Where the restraint is necessary to prevent a multiplicity of judicial proceedings"].)[2]

The HOA moves for summary adjudication of the eighth cause of action on the grounds that an injunction is a remedy and not an independent cause of action.

In opposition, Plaintiffs concede that injunctive relief is a remedy as opposed to a standalone cause of action, but they argue that, to the extent the other underlying causes of action have merit, injunctive relief is appropriate.

Therefore, the Court grants summary adjudication of the eighth cause of action on the grounds that injunctive relief is not an independent cause of action.

9. ISSUE 9 – NINTH CAUSE OF ACTION – DECLARATORY RELIEF

"Any person interested under a written instrument, excluding a will or trust, or under a contract, or who desires a declaration of his or her rights or duties with respect to another, or in respect to, in, over or upon property [...] may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action or cross-complaint in the superior court for a declaration of his or her rights and duties in the premises, including a determination of any question of construction or validity arising under the instrument or contract." (Code Civ. Proc., § 1060.) "The declaration may be either affirmative or negative in form and effect, and the declaration shall have the force of a final judgment. The declaration may be had before there has been any breach of the obligation in respect to which said declaration is sought." (Ibid.)

Causes of action for

declaratory relief require “(1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the party's rights or obligations.” (Jolley v.

Chase Home Finance, LLC (2013) 213 Cal.App.4th 872, 909.) Because declaratory relief operates prospectively, and not merely for the redress of past wrongs, (Snyder v. California Ins. Guarantee Assn. (2014) 229 Cal.App.4th 1196, 1207), a plaintiff or cross-complainant may prevail on a claim for declaratory relief, regardless of whether they have yet suffered any damages.

Plaintiffs seek a judicial declaration that:

(a) the

HOA must comply with its duties and obligations and comply with the powers and authorities provided by the CC&Rs as well as Articles of Incorporation to protect Plaintiffs Property, as well as health, safety, and welfare, from the conditions on the Burke Property and Appurtenant Areas affecting Plaintiffs and Plaintiffs Property;

(b) the

HOA must remove all of the HOA Tree roots from the Plaintiffs Property;

(c) the

HOA must follow industry standards for removal of the HOA Tree roots;

(d) the

HOA must take steps to abate the condition and prevent the reoccurrence of the condition concerning the HOA Tree and roots;

(e) the

HOA is liable for damage caused by the HOA Tree roots to Plaintiffs Property;

(f) that

the HOA make all necessary repairs and take corrective action regarding the Burke Tree roots and 2905 Trees' roots, after notice and non-compliance by the Burkes and/or 2905 Tree owner.

(Complaint ¶ 116.)

HOA

argues that the declaratory relief sought is improper because it is duplicative of the other causes of action.

Generally,

an action in declaratory relief will not lie to determine an issue which can be determined in the underlying tort action.

The relief statute should not be used for the purpose of anticipating and determining an issue which can be determined in the main action. The object of the statute is to afford a new form of relief where needed and not to furnish a litigant with a second cause of action for the determination of identical issues. Under section 1061 of the Code of Civil Procedure the court may refuse to exercise the power to grant declaratory relief where such relief is not necessary or proper at the time under all of the circumstances. The availability of another form of relief that is adequate will usually justify refusal to grant declaratory relief. The refusal to exercise the power is within the court's legal discretion and will not be disturbed on appeal except for abuse of discretion.

(California Ins. Guarantee Assn. v.

Superior Court (1991) 231 Cal.App.3d 1617, 1623–1624 [cleaned up]; see also General of America Ins. Co. v. Lilly, 258 Cal.App.2d 465, 470 [affirming the trial court's sustaining of the demurrer and subsequent dismissal where the declaratory relief sought was duplicative of an issue to be determined in the main action].)

In

opposition, Plaintiffs argue it is not duplicative, because it seeks prospective relief. The Court disagrees. Plaintiff requests a

declaration that the HOA “take corrective action” and be “liable for damage caused” and “take steps to abate the condition” and prevent its reoccurrence, etc. All of the relief sought pertains to the past alleged wrong of failing to properly address the issues related to the appurtenant/common area, and the tree roots, causing harm to Plaintiffs' property.

Therefore,

the Court grants summary adjudication of Issue 9.

10. ISSUE 10 – PUNITIVE DAMAGES

HOA argues the nature of the case, which involves maintenance issues on the property, does not support the imposition of punitive damages and the evidence does not support a claim for punitive damages. The Court disagrees on both counts.

As for the first argument, Plaintiffs seek punitive damages in connection with Defendants' alleged oppression, fraud, or malice vis-à-vis the fourth, fifth, and seventh causes of action for trespass, nuisance, and elder abuse, respectively. (Complaint ¶¶ 71, 81, 96.) Thus, there is nothing inherently problematic with Plaintiff's request for punitive damages based on the structure of the Complaint alone.

Further, as discussed above, HOA has not met its initial prima facie burden of production and persuasion to demonstrate that it acted reasonably under the circumstances.

Therefore, the Court denies summary adjudication of Issue 10.

CONCLUSION AND ORDER

Therefore, the Court grants in part and denies in part HOA's motion for summary adjudication. Because injunctive relief is a remedy as opposed to a standalone cause of action, and because Plaintiffs' declaratory relief cause of action does not seek true prospective relief and is duplicative of the other causes of action, the Court grants summary adjudication of Issues 8 and 9.

However, in light of the evidentiary problems, finding the HOA has failed to meet its initial prima facie burdens of production and persuasion to demonstrate it acted reasonably and in accordance with the terms of the CC&Rs, the Court denies summary adjudication of Issues 1, 2, 3, 4, 5, 6, 7, and 10.

Further, because the Court denies in part HOA's request for summary adjudication, it similarly denies HOA's request for summary judgment.

HOA shall lodge a proposed Order in conformance with the Court's ruling on or before October 2, 2026.

HOA shall also provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED: September 22, 2026 ____/s/____

Michael
E. Whitaker

Judge
of the Superior Court

[1] "[Name of plaintiff] claims that [name of defendant] trespassed on [his/her/nonbinary pronoun/its] property. To establish this claim, [name of plaintiff] must prove all of the following: 1. That [name of plaintiff] [owned/leased/occupied/controlled] the property; 2. That [name of defendant] [intentionally/, although not intending to do so, [recklessly [or] negligently]] entered [name of plaintiff]'s property] [or] [intentionally/, although not intending to do so, [recklessly [or] negligently]] caused [another person/[insert name of thing]] to enter [name of plaintiff]'s property]; 3. That [name of plaintiff] did not give permission for the entry [or that [name of defendant] exceeded [name of plaintiff]'s permission]; 4. That [name of plaintiff] was [actually] harmed; and 5. That [name of defendant]'s [entry/conduct] was a substantial factor in causing [name of plaintiff]'s harm."
(CACI No. 2000 (2026 ed.).)

[2] "A permanent injunction is a determination on the merits that a plaintiff has prevailed on a cause of action against a defendant and that equitable relief is appropriate. Although a decision whether to issue, and how to phrase, a permanent injunction is essentially discretionary, the trial court's discretion is by no means as broad as that which it might exercise in weighing the equities of the parties' positions for the purpose of deciding whether to issue a preliminary injunction or other provisional relief. A permanent

injunction is very different from a pendente lite injunction. Like any judgment, a permanent injunction, notwithstanding its discretionary component, must be sufficiently supported by the evidence of record. If the evidence is insufficient to justify issuance of a permanent injunction, the trial court simply had no discretion to exercise." (DVD Copy Control Assn., Inc. v. Kaleidescape, Inc. (2009) 176 Cal.App.4th 697, 721 [cleaned up].)